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AS AMENDED

By: Sacchieri of the Senate

and

Crosswhite Hader of the
House

An Act relating to firearms; amending 21 O.S. 2021, Section 1280.1, which relates to possession of firearms on school property; **removing certain provision regarding firearms and weapons on school property**; clarifying liability provision; **authorizing certain storage in a privately owned motor vehicle**; removing certain license requirement; updating statutory language; updating statutory references; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1280.1, is amended to read as follows:

Section 1280.1.

POSSESSION OF FIREARM ON SCHOOL PROPERTY

A. It shall be unlawful for any person to have in his or her possession on any public or private school property or while in any school bus or vehicle used by any school for transportation of students or teachers any firearm or weapon designated in Section

1 1272 of this title, except as provided in subsection C of this
2 section or as otherwise authorized by law.

3 B. For purposes of this section:

4 1. "School property" means any publicly owned property held for
5 purposes of elementary, secondary, or vocational-technical
6 education, and shall not include property owned by public school
7 districts or where such property is leased or rented to an
8 individual or corporation and used for purposes other than
9 educational;

10 2. "Private school" means a school that offers a course of
11 instruction for students in one or more grades from prekindergarten
12 through grade twelve and is not operated by a governmental entity;
13 and

14 3. "Motor vehicle" means any automobile, truck, minivan, or
15 sports utility vehicle.

16 C. Firearms and weapons are allowed on school property and
17 deemed not in violation of subsection A of this section as follows:

18 1. ~~A gun or knife designed for hunting or fishing purposes kept~~
19 ~~in a privately owned vehicle and properly displayed or stored as~~
20 ~~required by law,~~ provided such vehicle containing said gun or knife
21 ~~is driven onto school property only to transport a student to and~~
22 ~~from school and such vehicle does not remain unattended on school~~
23 ~~property;~~

1 ~~2.~~ A ~~gun~~ firearm or knife used for the purposes of
2 participating in the ~~Oklahoma~~ Department of Wildlife Conservation
3 certified hunter training education course or any other hunting,
4 fishing, safety, or firearms training courses, or a recognized
5 firearms sports event, team shooting program, or competition, or
6 living history reenactment, provided the course or event is approved
7 by the principal or chief administrator of the school where the
8 course or event is offered, and provided the weapon is properly
9 displayed or stored as required by law pending participation in the
10 course, event, program, or competition;

11 ~~3.~~ 2. ~~Weapons~~ A firearm or weapon in the possession of any
12 peace officer or other person authorized by law to possess a firearm
13 or weapon in the performance of his or her duties and
14 responsibilities;

15 ~~4.~~ 3. A concealed or unconcealed firearm or weapon carried onto
16 private school property or in any school bus or vehicle used by any
17 private school for transportation of students or teachers by a
18 person who is licensed pursuant to the Oklahoma Self-Defense Act,
19 provided a policy has been adopted by the governing entity of the
20 private school that authorizes the possession of a firearm or weapon
21 on private school property or in any school bus or vehicle used by a
22 private school. Except for acts of gross negligence or willful or
23 wanton misconduct, a governing entity of a private school that
24 adopts a policy which authorizes the possession of a firearm or

1 weapon on private school property, a school bus, or a vehicle used
2 by the private school shall be immune from and not subject to
3 liability for any injuries arising from the adoption of the policy.
4 The provisions of this paragraph shall not apply to claims pursuant
5 to the Administrative Workers' Compensation Code Act;

6 ~~5.~~ 4. A ~~gun~~ firearm, knife, bayonet, or other weapon in the
7 possession of a member of a veterans group, the ~~national guard~~
8 National Guard, active military, the Reserve Officers' Training
9 Corps (ROTC), or Junior ROTC, in order to participate in a ceremony,
10 assembly, or educational program approved by the principal or chief
11 administrator of a school or school district where the ceremony,
12 assembly, or educational program is being held; provided, however,
13 the ~~gun~~ firearm or other weapon that uses projectiles is not loaded
14 and is inoperable at all times while on school property;

15 ~~6.~~ 5. A ~~handgun~~ firearm carried in a privately owned motor
16 vehicle pursuant to a ~~valid handgun license authorized by the~~
17 provisions of the Oklahoma Self-Defense Act onto property set aside
18 by a public or private elementary or secondary school for the use or
19 parking of any vehicle; provided, however, ~~said handgun~~ the firearm
20 shall be stored and hidden from view in a locked motor vehicle when
21 the motor vehicle is left unattended on school property; and

22 ~~7.~~ 6. A handgun carried onto public school property by school
23 personnel who have been designated by the board of education,
24 provided such personnel either:

1 a. possess a valid armed security guard license as
2 provided for in Section 1750.1 et seq. of Title 59 of
3 the Oklahoma Statutes, or

4 b. hold a valid reserve peace officer certification as
5 provided for in Section 3311 of Title 70 of the
6 Oklahoma Statutes,

7 if a policy has been adopted by the board of education of the school
8 district that authorizes the carrying of a handgun onto public
9 school property by such personnel. Nothing in this subsection shall
10 be construed to restrict authority granted elsewhere in law to carry
11 firearms.

12 D. Any person violating the provisions of this section shall,
13 upon conviction, be guilty of a misdemeanor punishable by a fine ~~of~~
14 not to exceed Two Hundred Fifty Dollars (\$250.00).

15 SECTION 2. This act shall become effective November 1, 2025.

16 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
17 February 19, 2025 - DO PASS AS AMENDED
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